

6	30-2022-01249712 Doan v. Whole Foods Market, Inc.	Plaintiff's (Kathleen Doan) Motion for an Order Quashing or Modifying Defendants' Deposition Subpoena for Production of Business Records on Third Parties Electramecannica, Dunkin' Donuts LLC, and Doordash, Inc. (Motion), filed on 5-17-23 under ROA No 78, is GRANTED in part and DENIED in part as set forth below. Code of Civil Procedure section 1987.1 states, in part, "(a) If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person. [¶] (b) The following persons may make a motion pursuant to subdivision (a): [¶] (1) A party. [¶] (2) A witness. . . ." Code of Civil Procedure section 1985.3 states, in part: ". . . (g) Any consumer whose personal records are sought by a subpoena duces tecum and who is a party to the civil action in which this subpoena duces tecum is served may, prior to the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena duces tecum. Notice of the bringing of that motion shall be given to the witness and deposition officer at least five days prior to production. The failure to provide notice to the deposition officer shall not invalidate the motion to quash or modify the subpoena duces tecum but may be raised by the deposition officer as an affirmative defense in any action for liability for improper release of records. . . ." "The right of privacy is an 'inalienable right' 'secured by article I, section 1 of the California Constitution. [Citation.] The right of privacy protects against the unwarranted, compelled disclosure of private or personal information and 'extends to one's confidential financial affairs as well as to the details of one's personal life.' [Citation.] (<i>SCC Acquisitions, Inc. v. Superior Court</i> (2015) 243 Cal.App.4th 741, 754.) <i>San Diego Trolley, Inc. v. Superior Court</i> (2001) 87 Cal.App.4th 1083, 1097 (<i>San Diego</i> [disapproved on other
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		grounds in <i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 557, fn. 8)), provides, "While we have not been directed to any statutory privilege which protects this information from disclosure, it is clear Cooper's personnel records and employment history are within the scope of the protection provided by the state and federal Constitutions. [Citations.]" "The constitutional right of privacy is not absolute; it may be abridged to accommodate a compelling public interest. [Citations.] One such interest, evidenced by California's broad discovery statutes, is "the historically important state interest of facilitating the ascertainment of truth in connection with legal proceedings." ' [Citation.] When an individual's right of privacy in his financial affairs conflicts with the public need for discovery in litigation, the competing interests must be carefully balanced. [Citation.] Even where the balance weighs in favor of disclosure of private information, the scope of the disclosure will be narrowly circumscribed; such an invasion of the right of privacy "must be drawn with narrow specificity" ' and is permitted only to the extent necessary for a fair resolution of the lawsuit." [Citations.] (<i>Moskowitz v. Superior Court</i> (1982) 137 Cal.App.3d 313, 316; disapproved on other grounds in <i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 557, fn. 8.) <i>Williams v. Superior Court (Williams)</i> (2017) 3 Cal.5th 531, 552 (<i>Williams</i>), explains, "The party asserting a privacy right must establish a legally protected privacy interest, and objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citations.] The party seeking information may raise in response whatever legitimate and important countervailing interest disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interest or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. [Citation.]" "To the extent prior cases require a party seeking discovery of private information to always establish a compelling interest or compelling need, without regard to the other considerations articulated in <i>Hill v. National Collegiate Athletic Assn.</i>, <i>supra</i>, 7 Cal.4th 1, 26 Cal.Rptr.2d 834, 865 P.2d 633, they are disapproved." (<i>Id.</i>, at p. 557.) The Motion states, "Here, Defendant cannot justify seeking plaintiff's employment records—which, again, include all documentation relating to Doan's admittance, onboarding, compensation, performance, discipline, duties, and disability status — from her subsequent employers – as none of the aforementioned has any relation or relevance to the action at hand." (Motion; 6:8-
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	<i>San Diego.</i> Defendants have raised an important countervailing interest in that the records are necessary for the ascertainment of truth in legal proceedings as to lost past and future earnings. In conducting the balancing under <i>Williams</i>, the FAC specifically requests damages for lost past and future income and employment benefits. CACI Nos. 3961 and 3962 describe the calculations used to determine damages based on mitigation. Based on this balancing, the court finds that Request Nos. 4, 6, and 7 request records relevant to Plaintiff's claims for lost past and future earnings. Therefore, the court finds that Defendants' countervailing interest outweighs Plaintiff's right to privacy as to Request Nos. 4, 6, and 7 because the FAC places Plaintiff's lost past and future earnings at issue. As to Request No. 1, the court finds that Defendants' countervailing interest outweighs Plaintiff's right to privacy. Request No. 1 seeks records regarding employment applications Plaintiff submitted to the Deponents. These employment applications may lead to the discovery of admissible evidence as to Plaintiff's employment with Defendant— Mrs. Gooch's Natural Foods Markets, Inc. dba Whole Foods Market (WFM). Specifically, these employment applications may contain information regarding Plaintiff's employment with WFM. Therefore, the court DENIES the Motion as to Request No. 1. As to Requests Nos. 2, 3, and 5, the court finds that Plaintiff's interest in the privacy of Plaintiff's employment records outweighs the countervailing interest in ascertaining the truth in legal proceedings because these requests are overbroad. For example, Request Nos. 2, 3, and 5 encompass records related to Plaintiff's explanation of benefits as to Plaintiff's health insurance, and other health issues. Therefore, the court GRANTS the Motion as to Request Nos. 2, 3, and 5. Based on the above, the court GRANTS Plaintiff's (Kathleen Doan) Motion for an Order Quashing or Modifying Defendants' Deposition Subpoena for Production of Business Records on Third Parties Electramecannica, Dunkin' Donuts LLC, and Doordash, Inc., filed on 5-17-23 under ROA No 78, as to Request Nos. 2, 3, and 5. The court DENIES the Motion as to Request Nos. 1, 4, 6, and 7. The court DENIES Plaintiff's request for a monetary sanction because Plaintiff was substantially justified in bringing this Motion and Defendants were substantially justified in opposing it. (Code Civ. Proc., § 1987.2, subd. (a).) Defendants are to give notice.
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